

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH**

IN RE:	)	
JAMES NELSON	)	Docket No.s 2025-12;
License No. 068.0000383	)	2025-13

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COME the State of Vermont, by and through Prosecuting Attorney Zoe Newman, and Respondent James Nelson, by and through his attorney Jim Cooley who hereby stipulate and agree as follows:

Authority

1. The [Vermont Board of Allied Mental Health Practitioners (the Board) has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. § 129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapter 78; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation (OPR).

Stipulated Facts

2. James Nelson (Respondent), of Jericho, Vermont, is licensed as a Clinical Mental Health Counselor under license number 068.0000383, which was first issued by the State of Vermont, on February 19, 1998 and expires on January 31, 2025.
3. Respondent holds a separate Alcohol and Drug Abuse Counselor license under license number 151.0127781, which was first issued by the State of Vermont on January 26, 2017, and expires on January 31, 2025.
4. Respondent worked as an Employee Assistance Program (EAP) provider for counseling services, contracted by a non-profit facility (the Facility) in Chittenden County, Vermont, during the month of August 2024.
5. In August of 2024, A.M. was an employee of the Facility who sought counseling through its EAP program.
6. A.M. was given the option of three mental health professionals contracted by the EAP, including Respondent, and A.M. chose to work with Respondent.
7. On August 13, 2024, Respondent and A.M. first exchanged messages which

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included exchanging e-mail addresses and scheduling a first meeting over Zoom.

8. On August 22, 2024, Respondent and A.M. met over Zoom, a cloud-based video communications platform, for an introductory session.
9. During the August 22, 2024, session, A.M. shared, in part, that A.M. was looking for counseling due to current conflicts as well as previous abuse-related trauma, some of which was sexual in nature.
10. On August 22 and 23, 2024, Respondent and A.M. texted back and forth regarding scheduling their next session, with A.M. sending the last text of the day, on August 23, asking for a specific time.
11. On August 24, 2024, at 2:47 p.m., A.M. received a text from Respondent that read: "I apologize this should not have been sent."
12. Shortly after receiving the first text, A.M. received a photo message from Respondent.
13. The photo A.M. received from Respondent depicted a forward-facing naked man on a towel, outdoors, with a body of water in the background; the image only captured the man from the waist down.
14. The penis was prominently displayed in the photo.
15. A.M. did not respond to Respondent's messages.
16. On August 24, 2024, at 3:57, just over an hour after Respondent sent the text and photo messages to A.M., Respondent phoned A.M. but A.M. did not answer.
17. When A.M. did not pick up the phone for Respondent, Respondent left A.M. a voice message.
18. The voice message included Respondent apologizing, claiming the photo was "something that was sent to [Respondent]," and asking to reschedule the following session to a new time.
19. A.M. did not respond to the voicemail.
20. As a direct result of Respondent's actions – sending a photo of a penis to his client – A.M. reported being re-traumatized: "[t]his has unfortunately reminded me and attached itself to memories of a time when I was vulnerable, not in control, and powerless. It has made me feel like I am taking steps backward toward a place in my memory I don't want to return to."
21. Respondent later confirmed he sent A.M. the photo and text and that he left A.M. the voicemail.

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22. Respondent explained that he intended to save the photo but accidentally sent it to A.M. instead.

Violation One: 3 V.S.A. §129a(a)(28) Engaging in conduct of a character likely to deceive, defraud, or harm the public.

23. Paragraphs 2 through 22 above are incorporated herein.
24. As a Licensed Clinical Mental Health Counselor, Respondent cannot engage in conduct likely to harm the public.
25. By texting A.M., a mental health counseling client, a photo of a penis – whether intentionally sent or recklessly sent, – Respondent engaged in conduct likely to harm the public.
26. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(28).

Violation Two: 3 V.S.A. §129a(b) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (1) performance of unsafe or unacceptable patient or client care citation and statutory language

27. Paragraphs 2 through 22 above are incorporated herein.
28. As a Licensed Clinical Mental Health Counselor, Respondent is to practice competently, which includes, at all times, providing safe and acceptable patient or client care.
29. By texting A.M., a mental health counseling client, a photo of a penis in the middle of their conversation regarding scheduling when A.M. was seeking counseling for trauma related to sexual abuse, Respondent failed to provide safe and acceptable patient or client care.
30. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(1).

Understandings

31. Respondent admits the facts above are true and the conditions below are necessary to protect the public. To avoid delay, uncertainty, inconvenience, and the expense of protracted litigation, the Parties enter this full and final Stipulation pursuant to these Understandings and the Order below. Respondent does not dispute that the

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State may be able to prove these charges by a preponderance of the evidence if this matter proceeds to a merits hearing.

32. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
33. Respondent specifically waives any claim that any disclosures made to the Board during review of this agreement have prejudiced Respondent's right to a fair and impartial hearing if this agreement is not accepted and proceeds to a hearing on the merits before the same Board.
34. Respondent has read and reviewed this entire document and agrees it contains the entire agreement between the parties.
35. Respondent is not under the influence of any drugs or alcohol at the time of signing this Stipulation and Consent Order.
36. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
37. Respondent voluntarily waives the right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
38. Respondent understands that he is responsible for all compliance costs associated with this Stipulation and Consent Order.
39. Respondent agrees the Board may enter the Order set forth below.

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board of Allied Mental Health hereby warns Respondent's license.
- B. The Board hereby **ASSESSES AN ADMINISTRATIVE PENALTY IN THE AMOUNT OF ONE THOUSAND DOLLARS (\$1,000.00)]** against Respondent. This penalty is to be paid within **ninety (90) days** of the date of entry of this Order.
- C. The Board hereby **CONDITIONS** Respondent's Clinical Mental Health Counselor license for a **MINIMUM OF three (3) MONTHS, commencing on the date of entry**. The **CONDITIONS** shall be as follows:
 - i. Length of Time of Conditions Imposed. The conditions shall remain in place until Respondent has completed all conditions as ordered.
 - ii. Monitoring. The Office of Professional Regulation, through the Enforcement Case

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Manager, shall be responsible for monitoring Respondent's compliance with these Conditions. All reports and/or correspondence regarding compliance with these conditions shall be submitted to the Case Manager in accordance with the Conditions listed below.

- iii. Required Coursework. Respondent shall, within ninety (90) days following the entry of this Order, at his own expense, complete ten (10) hours of pre-approved courses, which must include the following topics: 1. HIPAA compliance and text messaging with patients and 2. Ethical obligations when texting with patients. For pre-approval, Respondent must submit to the Case Manager the name of each course, the name of the sponsoring organization, and a description of the course content and/or syllabus. Respondent must achieve a passing score on the post-tests for the courses, and submit test results, workbooks completed in full and in a satisfactory manner, and certificates of completion to the Office of Professional Regulation.
 - iv. Failure to complete the courses within the prescribed timeframe shall constitute a violation of this Order. The coursework may not be counted toward any continuing education requirement of licensure.
 - v. License Renewal. This Order does not automatically extend the license and Respondent must comply with the requirements for license renewal
 - vi. Notification to Other States. In the event Respondent is licensed in any other state(s), Respondent must inform the licensing board of the state(s) in which Respondent is licensed of the conditional status of Respondent's Vermont license within thirty (30) days of the date of entry of this Order.
 - vii. Costs. Respondent shall bear all costs of complying with this Consent Order.
 - viii. Violation of this Order. If Respondent violates this Order, the Board, after giving Respondent notice and an opportunity to be heard, may rescind or modify this Order and impose additional appropriate disciplinary actions. If a complaint of unprofessional conduct is made against Respondent during the term of this Order, this Order shall be automatically extended until the unprofessional conduct matter is resolved.
 - ix. Completion of Conditional License Period. Respondent shall submit a petition to the Docket Clerk to remove any and all conditions from Respondent's license. The State will support or oppose Respondent's petition. The Board will conduct a hearing if necessary. Respondent bears the burden and must present proof that Respondent has fully complied with the terms of this Order and these conditions are no longer necessary to protect the public.
- D. Notwithstanding any provision above, the Respondent must continue to meet all requirements for maintaining a license, license renewal and license reinstatement.
- E. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. § 129(a).

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F. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

Dated: 4/10/25

Dated: 4-4-25

APPROVED AS TO FORM:

Dated: 4-7-25

APPROVED AND SO ORDERED:

Dated: 4/17/25

Date of Entry: 4/17/25

STATE OF VERMONT
SECRETARY OF STATE

By: Zoe Newman
Zoe Newman
Prosecuting Attorney

RESPONDENT

By: James Nelson
James Nelson

COUNSEL FOR RESPONDENT

By: Jim Cooley
Jim Cooley, Esq.

VERMONT BOARD OF ALLIED
MENTAL HEALTH

DocuSigned by:
By: Tammy Austin
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Chairperson

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BOARD OF ALLIED MENTAL HEALTH**

In re: James Nelson	)	Docket No.s 2025-12
License no. 068.0000383	)	2025-13
	)	

SPECIFICATION OF CHARGES

NOW COMES the State of Vermont (State) and makes the following charges against
Licensed Clinical Mental Health Counselor, James Nelson:

Board Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the Board) has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after a disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. § 129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapter 78; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation (OPR).

Statement of Facts

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3. Respondent holds a separate Alcohol and Drug Abuse Counselor license under license number 151.0127781, which was first issued by the State of Vermont on January 26, 2017, and expires on January 31, 2025.
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22. Respondent explained that the photo was a photo he took of his own person and that he intended to save the photo but inadvertently sent it to A.M. instead.

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Violation One: 3 V.S.A. §129a(a)(28) Engaging in conduct of a character likely to deceive, defraud, or harm the public.

23. The State re-alleges and incorporates Paragraphs 2 through 22 above.
24. As a Licensed Clinical Mental Health Counselor, Respondent cannot engage in conduct likely to harm the public.
25. By texting A.M., a mental health counseling client, a photo of a penis – whether intentionally sent or recklessly sent, – Respondent engaged in conduct likely to harm the public.
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Relief Requested

WHEREFORE, the State of Vermont respectfully requests that the Board revoke, suspend, condition, or otherwise discipline both Respondent's Clinical Mental Health Counselor license.

DATED this 16th day of January 2025.

STATE OF VERMONT
SECRETARY OF STATE

By: *Zoe Newman*
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